

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
NIKAURY RODRIGUEZ,

Plaintiff,**-against-****CITY OF NEW YORK and
POLICE OFFICER RAMON VELEZ,****Defendants.**
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 2, 2013

Defendant's Address:

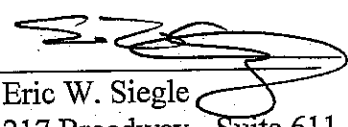
CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, NY 10007

P.O. RAMON VELEZ
c/o New York City Police Dept.
52nd Precinct
3016 Webster Avenue
Bronx, New York 10467

Yours, etc.

SIEGLE & SIMS L.L.P.

By:


Eric W. Siegle
217 Broadway - Suite 611
New York, NY 10007
(212) 406-0110

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----x
NIKAURY RODRIGUEZ,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

**CITY OF NEW YORK and
POLICE OFFICER RAMON VELEZ,**

Defendants.
-----x

To the above named Defendants:

Plaintiff, NIKAURY RODRIGUEZ complaining of the defendants CITY OF NEW YORK ("CITY") and POLICE OFFICER RAMON VELEZ herein, by and through her attorneys SIEGLE & SIMS L.L.P., alleges the following upon information and belief:

1. At all times herein mentioned, defendant CITY was and is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. On or about August 3, 2012, before the commencement of this action, a Notice of Claim on behalf of the plaintiff, NIKAURY RODRIGUEZ was served in writing, sworn to by or on behalf of claimant/plaintiff, by delivering same by personal service upon CITY, which said Notice of Claim set forth the name and post office address of claimant and claimant's attorneys, the notice of claim, the time when, the place where, and the manner in which the claim arose and the items of damages or injuries claimed to have been sustained as far as then practicable.
3. Said Notice of Claim was presented and delivered to CITY within ninety (90) days after the claim herein sued upon arose and before the commencement of this action.
4. On March 19, 2013, defendant CITY orally examined plaintiff NIKAURY

RODRIGUEZ and had an opportunity to physically examine NIKAURY RODRIGUEZ.

5. This action was commenced within one year and three months after such cause of action arose and thirty (30) days have elapsed since the service of this claim or such claim was presented, and CITY has failed and refused to make an adjustment or payment of said claim.

6. POLICE OFFICER RAMON VELEZ was and is a natural person and at all times mentioned hereafter was an employee of defendant CITY OF NEW YORK and was working for and acting within the scope of his employment, and under color of state law, for defendant CITY OF NEW YORK.

7. On May 15, 2012, at approximately 6:43 p.m., plaintiff was lawfully present inside of the 169th Street and St. Nicholas Avenue entrance to the A/C subway lines at the 168th Street and Broadway stop, in the County, City and State of New York, and was not engaged in any wrongdoing.

8. On that date and at that time POLICE OFFICER VELEZ assaulted and used excessive force against plaintiff, while he and other members of the New York City Police Department arrested plaintiff NIKAURY RODRIGUEZ.

9. Plaintiff NIKAURY RODRIGUEZ had committed no crime, and there was no probable cause to arrest her.

10. Members of the New York City Police Department struck plaintiff NIKAURY RODRIGUEZ with a telescoping baton, and threw her to the ground, among other conduct, causing her to sustain serious physical injuries.

11. Plaintiff NIKAURY RODRIGUEZ was prosecuted in the Supreme Court of the State of New York, New York County. All charges against plaintiff were dismissed after a jury trial except Attempted Assault in the Third Degree, which charge is being appealed.

AS AND FOR A FIRST CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT

12. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 11.

13. On May 15, 2012, defendants CITY and VELEZ, its agents, servants and/or employees, arrested plaintiff NIKAURY RODRIGUEZ, handcuffed her, took her into custody, and detained her.

14. Plaintiff NIKAURY RODRIGUEZ was conscious of the arrest and confinement.

15. Plaintiff NIKAURY RODRIGUEZ did not consent to the confinement.

16. The arrest and confinement of plaintiff NIKAURY RODRIGUEZ was not otherwise privileged.

17. The arrest and confinement of plaintiff NIKAURY RODRIGUEZ was without probable cause.

18. As a result, plaintiff NIKAURY RODRIGUEZ suffered physical and mental injuries.

19. As a result thereof, plaintiff NIKAURY RODRIGUEZ has each been damaged in an amount exceeding the jurisdictional of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
ASSAULT

20. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 19.

21. The conduct of CITY, its agents, servants and/or employees detailed herein, including defendant VELEZ, including the beating of plaintiff with a telescoping baton, the throwing of plaintiff to the ground, the arrest, handcuffing, and arrest processing of plaintiff, was

done with the intent of placing plaintiff NIKAURY RODRIGUEZ in fear of imminent harmful and offensive conduct and did in fact place plaintiffs NIKAURY RODRIGUEZ in fear of imminent harmful and offensive conduct.

22. As a result, plaintiff NIKAURY RODRIGUEZ suffered physical and mental injuries.

23. As a result thereof, plaintiff has been damaged in a sum which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
BATTERY

24. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 23.

25. The conduct of CITY, its agents, servants and/or employees detailed herein, including defendant VELEZ, involving the beating of plaintiff with a telescoping baton, the throwing of plaintiff to the ground, the arrest, handcuffing, and arrest processing of plaintiff was intentional.

26. Plaintiff did not consent to the intentional touching of his body and person.

27. Such conduct by the defendant CITY, its agents, servants and/or employees towards plaintiff constituted offensive bodily contact.

28. As a result, plaintiff suffered physical and mental injuries.

29. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

**CUSTOMS AND PRACTICES OF DEFENDANT CITY OF NEW YORK WHICH
LED TO THE ASSAULT, BATTERY, AND FALSE ARREST AND IMPRISONMENT
OF PLAINTIFF**

30. Defendant CITY has customs and practices that it employs which caused and/or

contributed to plaintiff's false arrest and imprisonment, assault, battery and malicious prosecution.

31. It is the custom and/or practice of defendant CITY, its agents, servants and/or employees, to routinely seize individuals, without sufficient and legal probable cause.

32. Defendant CITY, its agents, servants and/or employees, due to a lack of training and supervision, fail to train and/or improperly train its employees in assessing the sufficiency of probable cause to seize an individual, especially in situations involving the execution of search warrants. Further defendant CITY fails to properly train and/or improperly trains its officers, including defendant VELEZ, in the proper use of force and how to properly use and when to use a telescoping baton.

33. Defendant CITY, its agents, servants, and/or employees, due to a lack of training and supervision, routinely engage in a custom or practice of making arrests without sufficient and legal probable cause.

34. Defendant CITY, its agents, servants and/or employees fails to train and/or improperly trains its employees in recognizing probable cause sufficient to seize an individual suspected of a crime.

AS AND FOR A FIRST CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO FOURTH AND FOURTEENTH AMENDMENTS
(FALSE ARREST AND IMPRISONMENT)

35. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 34.

36. Defendants CITY its agents, servants and/or employees conduct and actions toward plaintiff detailed herein, including that of defendant VELEZ, including the false arrest and imprisonment of plaintiff without probable cause, were in violation of the rights guaranteed plaintiff pursuant to the Fourth Amendment of the United States Constitution.

37. As set forth above, such conduct was the custom and practice of the defendant CITY herein.

38. As set forth above, such conduct was the result of the improper training and/or supervision of the agents, servant and/or employees of defendant CITY.

39. As set forth above, such conduct was performed under color of state law.

40. As a result of its conduct, defendant CITY violated plaintiff's civil rights and are liable to plaintiff pursuant to 42 U.S.C. §1983.

41. As a result, plaintiff suffered physical and mental injuries.

42. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(EXCESSIVE FORCE)

43. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 42.

44. Defendant CITY's conduct and actions toward plaintiff detailed herein, including those of defendant VELEZ, including the employment of excessive force, were in violation of the rights guaranteed plaintiff pursuant to the Fourth Amendment of the United States Constitution.

45. Such conduct was performed by defendant CITY, its agents, servants and employees within the scope of their employment and at the behest and under the supervision of the supervisors responsible for and overseeing the operation of the municipality named herein.

46. The conduct and acts of the defendant CITY were performed under the color of the state law.

47. As a result of their conduct, defendant violated plaintiff's civil rights and are liable to plaintiff pursuant to 42 U.S.C. §1983.

48. As a result, plaintiff suffered physical and mental injuries.

49. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

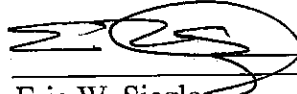
WHEREFORE, plaintiff NIKAURY RODRIGUEZ demands judgment against defendants CITY OF NEW YORK and POLICE OFFICER RAMON VELEZ, in a sum in excess of the jurisdiction of all lower courts which might otherwise have jurisdiction for each cause of action alleged, together with the costs and disbursements of this action, including punitive damages and attorneys fees.

Dated: New York, New York
May 2, 2013

Yours, etc.

SIEGLE & SIMS L.L.P.

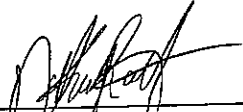
By:


Eric W. Siegle
217 Broadway - Suite 611
New York, NY 10007
(212) 406-0110

VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF NEW YORK)

NIKAURIY RODRIGUEZ, being duly sworn, deposes and says: Deponent has read the foregoing VERIFIED COMPLAINT and knows the contents thereof to be true and the same is true to Deponent's own knowledge except as to those matters therein stated to be alleged upon information and belief, and as to those matters Deponent believes them to be true.

X 

NIKAURIY RODRIGUEZ

Sworn to before me this
2nd day of May, 2013



NOTARY PUBLIC

ERIC W. SIEGLE
Notary Public, State of New York
No. 02313033835
Qualified in New York County
Commission Expires February 3, 2015